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Request for Information: Development of an Artificial Intelligence Action Plan

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Comment on FR Doc # 2025-02305

Submitter Information

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Organization: The Leadership Conference on Civil and Human Rights

General Comment

See attached file(s)

Attachments

National AI Plan - Comments from The Leadership Conference



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Reform Judaism
Service Employees International Union
Sikh Coalition
UnidosUS

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National Coordination Office
Networking and Information Technology Research and Development (NITRD)
National Science Foundation
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Submitted electronically via email to [REDACTED]

Re: Request for Information: Development of an Artificial Intelligence Action Plan (AI Action Plan)

Dear Mr. D'Souza,

On behalf of The Leadership Conference on Civil and Human Rights, a coalition charged by its diverse membership of more than 240 national organizations to promote and protect the civil and human rights of all persons in the United States, and its Center for Civil Rights and Technology, we write¹ in response to the Request for Information (RFI) on the Development of an Artificial Intelligence Action Plan (AI Action Plan).² We acknowledge *both the benefits and the risks* posed by AI, and to ensure the benefits of AI can be fully realized, it is essential for the administration to seek input from all stakeholders to properly address concerns in the AI Action Plan.

This response aligns with the goals outlined in the 2020 executive order (EO) on AI,³ which emphasized the importance of American leadership in AI to enhance economic competitiveness and national security while promoting human flourishing and our country's core democratic values. By advocating for robust data privacy regulations, oversight mechanisms, and transparency in AI deployment, The Leadership Conference's recommendations support that EO's goals of fostering public trust and ensuring that AI technologies are developed and used in a responsible, safe, and effective manner. In addition to those areas, these comments are responsive to the current RFI's request for views on addressing model development, application and use (either in the private sector or by

¹ This document is approved for public dissemination. The document contains no business-proprietary or confidential information. Document comments may be reused by the government in developing the AI Action Plan and associated documents without attribution.

² Request for Information on the Development of an Artificial Intelligence (AI) Action Plan, 2025-02305 (90 FR 9088), Feb. 26, 2025.

³ [Federal Register :: Promoting the Use of Trustworthy Artificial Intelligence in the Federal Government](#), Dec. 3, 2020.

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government), explainability and assurance of AI model outputs, cybersecurity, data privacy and security throughout the lifecycle of AI system development and deployment, risks, regulation and governance, technical and safety standards, research and development, education and workforce, innovation and competition, and procurement. The AI Action Plan should underscore a commitment to advancing AI in a manner that benefits all individuals and upholds fundamental rights and freedoms.

To achieve AI's benefits, the AI Action Plan must address AI's risks.

With the widespread use of AI, individuals are grappling with the impacts of discriminatory automated systems in every facet of life. AI systems have led to the loss of economic opportunities, higher costs or denial of loans and credit, [wrongful arrests](#), adverse impact on individuals' [employment or ability to get a job](#), [lower quality health care](#), and [barriers to housing](#). Others have raised additional areas of concern, including national security threats, the ability to compete globally, innovation, and marketplace competition. None of the desired outcomes in those areas are achievable if AI systems are not trustworthy and if they are not safe, effective, and fair.

Despite the well-documented risks and harms of AI, we lack appropriate safeguards for AI development and use, such as data minimization requirements, privacy protections, pre- and post-deployment impact assessments, protections against unfair treatment, and accountability measures. Moreover, the “black box” nature of many AI systems prevents adequate transparency and accountability, denying impacted people the ability to contest errors when they occur.

The AI Action Plan should include concrete measures to ensure AI safety and accountability.

The AI Action Plan should include concrete measures for deploying AI, including impact assessments, testing, data minimization, privacy protections, transparency and explainability requirements, and the availability of human alternatives, especially where the use of AI results in consequential decisions.

1. Ensuring Fairness in AI Development and Deployment

AI technologies must be developed and deployed in ways that promote fairness. For example, historical biases embedded in data can lead to discriminatory outcomes that disproportionately affect marginalized communities, including people of color, women, immigrants, and individuals with disabilities. AI that harms the American people is not moving society forward. We must address these risks and ensure AI systems are designed with robust safeguards. As the administration develops the AI Action Plan, it should consider the impact of AI, including calling for identifying and mitigating harm.

We recommend the following actions:

- **Audits and Impact Assessments:** Mandate regular bias audits and impact assessments for AI systems, particularly those used in high-stakes areas such as criminal justice, employment, and health care, to ensure those systems work and the outcomes are fair for everyone.

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- **Data Practices:** Encourage the use of diverse and representative datasets in AI training to minimize bias and ensure equitable outcomes.
- **Transparency and Accountability:** Implement transparency requirements for AI systems, including clear documentation of data sources, algorithms, and decision-making processes. Establish accountability mechanisms to address and rectify erroneous outcomes.

To be effective, the AI Action Plan must also ensure that where AI is put into use it is accessible to all community members. For example, people with disabilities continue to face accessibility challenges in using AI systems. Developers need to intentionally include disabled people by building systems that conform to accessibility standards. Developers should also consider the impact that differences in language may have to ensure accessibility for communities where AI systems are used.

2. Protecting Privacy and Civil Liberties

The deployment of AI technologies must respect individuals' privacy and civil liberties. The potential for AI to infringe on privacy rights is significant, particularly in surveillance and data collection practices. We urge the following measures:

- **Data Privacy Regulations:** Strengthen data privacy regulations to protect individuals from unauthorized data collection and use. Ensure that AI systems comply with these regulations.
- **Surveillance Oversight:** Establish oversight mechanisms for AI-driven surveillance technologies to prevent misuse and protect civil liberties.
- **Consent and Control:** Ensure that individuals have control over their data and are informed about how their data are being used by AI systems.

3. Promoting Transparency and Public Engagement

Public trust in AI technologies is essential for their successful adoption. Transparency and public engagement are key to building this trust. We recommend:

- **Public Reporting:** Require regular public reporting on the performance, impact, and risks of AI systems. This includes disclosing any incidents of harmful outcomes.
- **Stakeholder Engagement:** Foster ongoing engagement with a diverse range of stakeholders to ensure that AI policies and practices reflect the needs and concerns of all communities. Engaging with communities can provide valuable insights to better inform the development and use of AI systems.
- **Education and Awareness:** Invest in public education initiatives to raise awareness about AI technologies, their benefits, and potential risks.

4. Ensuring Accountability and Redress

Accountability mechanisms are crucial to address harm caused by AI systems. We propose the following actions:

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- **Regulatory Frameworks:** Develop and enforce regulatory frameworks that hold AI developers and deployers accountable for the impacts of their technologies.
- **Redress Mechanisms:** Establish accessible redress mechanisms for individuals and communities adversely affected by AI systems. This includes providing avenues for reporting and addressing grievances.

5. Promoting Economic Growth and Jobs

The AI Action plan should address AI's potential for economic growth and the creation of good jobs. This includes mitigating adverse economic impact and job losses by enhancing labor protections and banning certain AI uses or practices that are potentially harmful or violate worker privacy. By mitigating potential job losses, the AI Action Plan can harness technology for the growth of good jobs.

AI can harm workers by displacing them from their current positions, lower job quality, and increase unemployment. The AI Action Plan should ensure that displaced workers have an adequate social safety net, including reskilling and retraining opportunities.

Conclusion

AI should work, and it should work for everyone. The Leadership Conference on Civil and Human Rights and its Center for Civil Rights and Technology are committed to ensuring that AI technologies are developed and deployed in ways that advance equity, protect civil liberties, and promote transparency and accountability. Those creating and using AI systems have a responsibility to ensure that those systems work, are fit for purpose, and are not harmful. AI systems should not be used unless they are shown to be trustworthy, and the AI Action Plan should make clear that AI must be effective, safe, and fair.

Thank you for considering our recommendations. If you have any questions, please contact

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Sincerely,

The Leadership Conference's Center for Civil Rights and Technology